

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*

DOCKET NO. 24-16

Served: June 30, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER REQUIRING ADDITIONAL INFORMATION

I. Introduction

On June 22, 2026, the parties filed a Joint Status Report (“JSR”) which states that Respondent has withdrawn several of its nonparty subpoena requests and modified others and conveyed those changes to the nonparties through counsel on June 19, 2026. Respondent provided an attachment that documents the changes conveyed to SDS America and Samsung SDS Asia Pacific, the subpoenaed nonparties. In addition, Respondent made a proposal to Complainant in an effort “to resolve SEA’s Supplemental Motion to Compel Discovery....” JSR at 1. That proposal and Complainant’s position on it are not included in the attachment or described in the JSR.

I postponed the status conference set for June 17, 2026, and stated by email to the parties that it would be rescheduled. The June 10, 2026, Order Setting Status Conference and Date to Respond to Supplement to the Motion to Compel (“June 10 Order”) stated that the conference would be held to discuss the several emails the parties had sent to me that were not part of the record, as well as the supplement to the motion to compel, and “to better understand the issues and whether the parties have jointly resolved any of them....” June 10 Order at 1. The JSR intimates that there may be some resolution to some of the issues, but no withdrawals of outstanding motions have been filed.

II. Order

“Commission Rule 25 generally gives the presiding officer the authority to regulate proceedings before him or her, including the authority to dispose of any matters that normally and properly arises in the course of a proceeding.” *Phillip Marciano LLC v. US Cargo Services Inc.*, Dkt. No. 25-11, 2025 WL 2599710, *4 (F.M.C. Aug. 26, 2025) (Order Requiring Additional Information, citing 46 C.F.R. § 502.25). Accordingly, prior to discussing discovery issues in a status conference or issuing orders on the outstanding discovery motions, the parties

and the nonparties are **ORDERED** to file responses of no more than ten pages each, addressing the below inquiries, on July 10, 2026. Responses to those filings may be filed by July 17, 2026.

Complainant should address its understanding of and position on the offer made by Respondent to resolve the motion to supplement Complainant's motion to compel, including whether it agrees the offer is sufficient for it to withdraw its supplement to the motion, or to modify it, and if not, why it is not sufficient and the legal basis for its position.¹

Respondent and Complainant should briefly list or describe what discovery issues remain between them, and list what they believe they need from the other party to go forward with depositions. The parties should not reargue their motions to compel or attach exhibits and may file separate or joint statements regarding the remaining discovery issues.²

Nonparties SDS America and Samsung SDS Asia Pacific should address whether they still seek to quash the nonparty subpoenas as modified, and if so, the legal basis on which they rely. In the alternative, if they are currently complying or are planning to comply with the modified subpoenas, they should file a motion requesting withdrawal of their respective motions to quash.³



Linda S. Harris Crovella
Administrative Law Judge

¹ This response should not be served on nonparties SDS America or Samsung Asia Pacific.

² These responses should not be served on nonparties SDS America or Samsung Asia Pacific.

³ This response should be served on both Complainant and Respondent.